

NovaTech Solutions Pvt. Ltd.

MASTER SERVICE AGREEMENT

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Effective Date: 01 January 2026

Department: Legal

Classification: Confidential

1. PARTIES

1.1 Agreement

This Master Service Agreement ("Agreement") is entered into between NovaTech Solutions Pvt. Ltd. ("Service Provider") and the Customer identified in the applicable Statement of Work ("Client").

1.2 Purpose

This Agreement establishes the general terms governing services provided by NovaTech Solutions Pvt. Ltd. to the Client.

2. SERVICES

2.1 Scope

Services shall be described in one or more Statements of Work ("SOW") executed under this Agreement.

2.2 Statements of Work

Each SOW shall define:

- Deliverables
- Timelines
- Pricing

- Milestones
- Acceptance Criteria

If a conflict exists between this Agreement and an SOW, the SOW shall prevail for that engagement.

3. TERM

3.1 Initial Term

This Agreement shall remain effective for two (2) years from the Effective Date.

3.2 Renewal

This Agreement shall automatically renew for successive one (1) year terms unless either party provides sixty (60) days' written notice before expiration.

4. PAYMENT

4.1 Fees

The Client shall pay the fees specified in the applicable Statement of Work.

4.2 Invoices

Invoices shall be issued upon completion of agreed milestones unless otherwise specified.

4.3 Payment Period

Invoices are payable within thirty (30) calendar days of receipt.

4.4 Late Payments

Late payments may incur interest at 1.5% per month or the maximum amount permitted by applicable law, whichever is lower.

5. CHANGE MANAGEMENT

5.1 Change Requests

Either party may request changes to the scope of services.

5.2 Approval

No change shall become effective unless documented in writing and approved by both parties.

6. CONFIDENTIALITY

6.1 Confidential Information

Both parties shall protect Confidential Information disclosed during the engagement.

6.2 Permitted Disclosure

Confidential Information may only be disclosed:

- With prior written consent
- As required by law
- To professional advisors under confidentiality obligations

6.3 Duration

Confidentiality obligations survive termination of this Agreement for five (5) years.

7. INTELLECTUAL PROPERTY

7.1 Provider IP

NovaTech retains ownership of all pre-existing intellectual property, methodologies, frameworks, software libraries, tools, and know-how.

7.2 Client Deliverables

Ownership of custom deliverables transfers to the Client only after full payment unless otherwise specified in the applicable Statement of Work.

7.3 Third-Party Components

Third-party software remains subject to its respective license terms.

8. WARRANTIES

8.1 Professional Services

NovaTech warrants that services shall be performed using reasonable skill and care consistent with industry standards.

8.2 Disclaimer

Except as expressly stated, all services are provided "as is" without additional warranties.

9. LIMITATION OF LIABILITY

9.1 Liability Cap

Except for fraud, gross negligence, confidentiality breaches, intellectual property infringement, or willful misconduct, each party's total liability shall not exceed the total fees paid during the preceding twelve (12) months.

9.2 Excluded Damages

Neither party shall be liable for indirect, incidental, consequential, special, or punitive damages.

10. INDEMNIFICATION

10.1 Provider Indemnity

NovaTech shall defend and indemnify the Client against third-party claims alleging that Company-developed deliverables infringe intellectual property rights.

10.2 Client Indemnity

The Client shall indemnify NovaTech against claims arising from Client-provided content, data, or instructions.

11. TERMINATION

11.1 Termination for Convenience

Either party may terminate this Agreement by providing sixty (60) days' written notice.

11.2 Material Breach

Either party may terminate immediately if the other party materially breaches this Agreement and fails to remedy the breach within thirty (30) days after receiving written notice.

11.3 Effect of Termination

Upon termination:

- Outstanding invoices become immediately payable.
- Confidential Information shall be returned or securely destroyed.
- Each party shall cease using the other party's confidential materials.

12. FORCE MAJEURE

12.1 Events

Neither party shall be liable for delays caused by events beyond reasonable control including natural disasters, war, terrorism, pandemics, government actions, labor disputes, or failures of public infrastructure.

12.2 Notice

The affected party shall notify the other party as soon as reasonably practicable.

13. GOVERNING LAW

13.1 Applicable Law

This Agreement shall be governed by the applicable laws governing NovaTech Solutions Pvt. Ltd.

13.2 Arbitration

Disputes shall first be resolved through good-faith negotiations.

If unresolved within thirty (30) days, disputes shall be settled through binding arbitration.

14. RELATED DOCUMENTS

This Agreement may operate together with:

- Vendor Agreement
- Non-Disclosure Agreement
- Statement of Work
- Information Security Policy

where applicable.

15. ENTIRE AGREEMENT

This Agreement, together with all executed Statements of Work, amendments, and referenced documents, constitutes the complete agreement between the parties concerning the services provided.

No modification shall be valid unless made in writing and signed by authorized representatives of both parties.

END OF DOCUMENT